PARYSCO ENTERPRISES (PRIVATE) LIMITED
versus
TIVAKE UMBA (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
KATIYO J
HARARE; 20 August 2025

Opposed Matter

Ms *P Mukumbiri*, for the applicant
Ms *T Shoko*, for the respondent

KATIYO J:

INTRODUCTION

This is an application for confirmation of cancellation of an agreement of sale entered into between the parties on 29 September 2023 in respect of Stand 924 Chikurubi Township of Manresa, and for consequential relief of eviction.

The Respondent opposed the application and raised preliminary points which this Court is enjoined to determine.

The Applicant also moved for the expungement of certain receipts annexed by the Respondent on the basis of inadmissibility.

BACKGROUND

The Applicant and the Respondent concluded an instalment sale agreement in respect of the immovable property described above. The Respondent was obliged to pay the purchase price in agreed instalments.

It is common cause that the Respondent defaulted in making instalment payments as stipulated in the agreement.

Pursuant to the breach, the Applicant issued a written notice in terms of s 8(2) of the Contractual Penalties Act [*Chapter 8:04*], affording the Respondent not less than thirty days within which to remedy the breach. The notice was served by registered post in accordance with s 8(3) of the Act.

The Respondent failed to remedy the breach within the prescribed period. The Applicant thereafter cancelled the agreement by written notice dated 20 November 2024.

Despite cancellation, the Respondent remained in occupation of the property, prompting the present application.

PRELIMINARY ISSUES

(a) Material Non-Disclosure

The Respondent alleged material non-disclosure. The test applicable is settled in *Manyenyeni* v *Minister of Local Government*, where the court held that non-disclosure must be material and *mala fide*, and must affect the court's ability to determine the matter.

In *casu*, the alleged non-disclosure relates to improvements allegedly effected by the Respondent. These do not constitute a defence to breach nor do they affect the validity of cancellation. The Applicant disclosed all material facts relevant to breach and compliance with the Contractual Penalties Act.

This point lacks merit and is dismissed.

(b) Alleged Material Dispute of Fact

The Respondent argued that disputes of fact render the matter unsuitable for motion proceedings.

The test is articulated in *Supa Plant Investments (Pvt) Ltd* v *Chidavaenzi*, where the court defined a material dispute as one leaving the court without a ready answer absent oral evidence.

Further guidance is found in *RioZim (Private) Limited* v *Falcon Resources (Private) Limited*, where it was held that a mere allegation of dispute is insufficient.

The Respondent does not deny breach. It does not deny receipt of the statutory notice. It does not deny failure to cure the breach. There is therefore no genuine material dispute of fact.

This preliminary objection is dismissed.

(c) Competency of Relief

The Respondent argued that the Applicant ought to have claimed specific performance instead of cancellation.

This submission is legally unsustainable. An innocent party is entitled to elect between specific performance and cancellation upon breach. The choice of remedy lies with the innocent party.

Section 8 of the Contractual Penalties Act expressly permits termination after proper notice.

The objection is dismissed.

EXPUNGEMENT OF RECEIPTS

The Respondent annexed receipts allegedly evidencing payments to ZESA and for borehole installation.

These documents were produced without proper authentication and without compliance with evidentiary requirements governing documentary proof.

Furthermore:

1. The receipts do not relate to rectification of breach of instalment obligations.
2. They are irrelevant to the issue of whether the agreement was lawfully cancelled.
3. They amount to an attempt to introduce a collateral claim for compensation without a counterclaim.

Evidence must be both relevant and admissible. Irrelevant matter ought not to clutter the record.

Accordingly, Annexures relating to ZESA receipts, borehole receipts and related payment documents are hereby expunged from the record for purposes of determination of this application.

MERITS

(1) Confirmation of Cancellation

Section 8(1) of the Contractual Penalties Act prohibits termination unless notice complying with s 8(2) has been given and the purchaser fails to remedy the breach.

The Applicant:

- Gave written notice,
- Specified the breach,
- Granted not less than thirty days,
- Served by registered post to the chosen address.

The Respondent failed to remedy the breach.
The statutory requirements having been met, cancellation was lawful and valid.
The Applicant is therefore entitled to confirmation of cancellation.

ORDER

IT IS ORDERED THAT:

1. The cancellation of the agreement of sale dated 29 September 2023 between the Applicant and Respondent be and is hereby confirmed.
2. The Respondent's annexed receipts relating to ZESA payments, borehole installation and alleged improvements are hereby expunged from the record as inadmissible and irrelevant to the determination of this application.
3. The Respondent shall pay costs of suit on an ordinary scale.

KATIYO J:…….

Rubayo-Chinuwo Law Chambers Legal Practitioners, applicant's legal practitioners
Mizha Mutukwa & Sambo Attorneys Legal Practitioners, respondent's legal practitioners